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After the pandemic ends, will the Bay Area get to keep to-go cocktails?

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When the Department of Alcoholic Beverage Control (ABC) issued its first Notice of Regulatory Relief last year, it allowed bars and restaurants to sell boozy drinks in outdoor spaces to help ease the economic blow from the COVID-19 pandemic.

It hasn't been a perfect solution, but selling alcoholic beverages for takeout, delivery or outdoor dining service has been a lifeline for many struggling businesses. California restaurants estimate they have lost about $6.2 billion since April 2020, according to The Business Journal.

"For restaurants, the road to recovery is going to be a long one," Mike Whatley, vice president of state and local at the National Restaurant Association, said in a statement last July. "Expanded off-premise alcohol regulations are one of several policies restaurant operators will need going forward."

But a year into regulatory relief and with vaccines underway, will cocktails to-go remain part of the Bay Area in a post-pandemic world? Efforts to make this a reality are still in progress, but here's what we know so far.

What's going to happen to parklets and outdoor service on sidewalks, streets and alleys?

Senator Scott Weiner introduced Senate Bill 314 in February. If passed, it would make serving alcoholic beverages permanent within parklets and expanded outdoor dining areas, including parking lots, streets, sidewalks and alleys. Previously, ABC restricted the sale and consumption of alcohol within bars or restaurant properties.

The main goal of the bill is to assist restaurants, bars and entertainment venues that have been devastated by the pandemic. "The pandemic hit our restaurants, bars and music venues like a wrecking ball, and we need to throw these small businesses a lifeline," Senator Wiener said in a statement. "These businesses are part of the fabric of our communities, and they employ so many of our neighbors. SB 314 creates much more flexibility for our hospitality businesses and makes permanent the expanded outdoor dining that so many Californians have grown to love."

Assembly Bill 61, introduced by Assembly Member Jesse Gabriel in December 2020, would also help restaurants with outdoor dining spaces and offer takeout or delivery. One of the things AB 61 would help create is to adopt "rules to remove a hard barrier requirement for outdoor alcohol service in order to streamline the creation of permanent outdoor dining areas in the public right of way." It would also require these rules to stay in place for at least two years following the end of local emergency guidance related to COVID-19.

Under current California law, ABC has allowed businesses to serve alcohol for outdoor service on streets, sidewalks and alleys through regulatory relief. It also allows restaurants and bars to sell bottled alcoholic beverages or cocktails to-go that have secured lids as long as those mixed drinks are sold alongside a bona fide meal (meaning foods that aren't just sandwiches, salads, or reheated frozen dishes).

But the looser restrictions for cocktails to-go and outdoor drinking, such as in parklets, will only remain in effect until the COVID-19 pandemic ends.

"We will follow the lead of the Governor and the Health Experts to determine when the pandemic has concluded, and when these temporary policies under the regulatory relief will cease," ABC wrote on its website. John Carr, information officer at ABC, explained via email that ABC will put out notices to the industry that will allow a 10-day adjustment period once regulatory relief ends.

Mayor London Breed has made a push to keep parklets in San Francisco after introducing legislation in mid-March to make the city's Shared Spaces Program permanent. Robin Abad Ocubillo, director of the Shared Spaces Program, told SFGATE that making Shared Spaces a permanent program is anticipated to go into effect by midsummer after it moves through the legislative process.

When can bars reopen indoors, without meals?

At this time, we still can't enjoy drinks inside a bar without food. This can only happen in counties in the yellow tier of the state's four-tier reopening plan. To advance into the yellow, a county must be reporting less than 1 new case per 100,000 people and have a test positivity rate below 2%.

Alameda, Marin, San Francisco, San Mateo, and Santa Clara counties moved into the orange tier last month. In those Bay Area counties, alcoholic beverages can be served for outdoor service without a meal.

Indoor bars that don't offer food or have a meal provider must remain closed if they are in a county that has not reached the orange tier.

Will we continue alcohol delivery and shipping?

With regulatory relief, businesses and distilleries have been able to ship or deliver alcoholic beverages, whereas previously only wineries and breweries were able to ship their bottled goods. Since last March, distilleries have been allowed to mail up to 2.25 liters per consumer per day, as noted on the ABC website, and businesses that offer delivery can only sell to-go drinks with meals. Cocktails that are delivered must be within sealed containers that don't have openings for straws.

Breweries can also offer beers for takeout service as long as drinks are served in sealed containers, like growlers or mason jars, alongside a meal. But whether booze and cocktails will continue to be delivered or shipped after the pandemic is still up in the air.

Senator Bill Dodd is championing efforts to continue delivering cocktails to-go beyond the pandemic. He has introduced Senate Bill 389, which would allow licensed businesses to sell alcoholic drinks in bottles or sealed containers with a meal for pick-up and delivery. And it's a move that's also been favored by the Golden Gate Restaurant Association.

"We are supportive of Senators Wiener and Dodd's legislation to allow businesses to continue to offer cocktails and beers to-go," the Golden Gate Restaurant Association told SFGATE. "Much like Shared Spaces, this has been a lifeline for the restaurant community, and we hope both will continue."

Last July, Hudson Riehle, vice president of research at the National Restaurant Association, found that the trend toward restaurant alcohol delivery on the national scale had increased even before the pandemic, and that trend is still in the upswing. Whatley added that alcohol sales have created an essential financial stream for restaurants during the pandemic.

"When the pandemic forced in-restaurant dining to temporarily close, operators couldn't sell the beverages on the premises, so a bipartisan group of lawmakers expanded regulations to accommodate the sale during the crisis," Whatley told the National Restaurant Association. "The new regulations have proved popular with both operators and customers."

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